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8. DEVELOPMENT IN BUSINESS ZONES

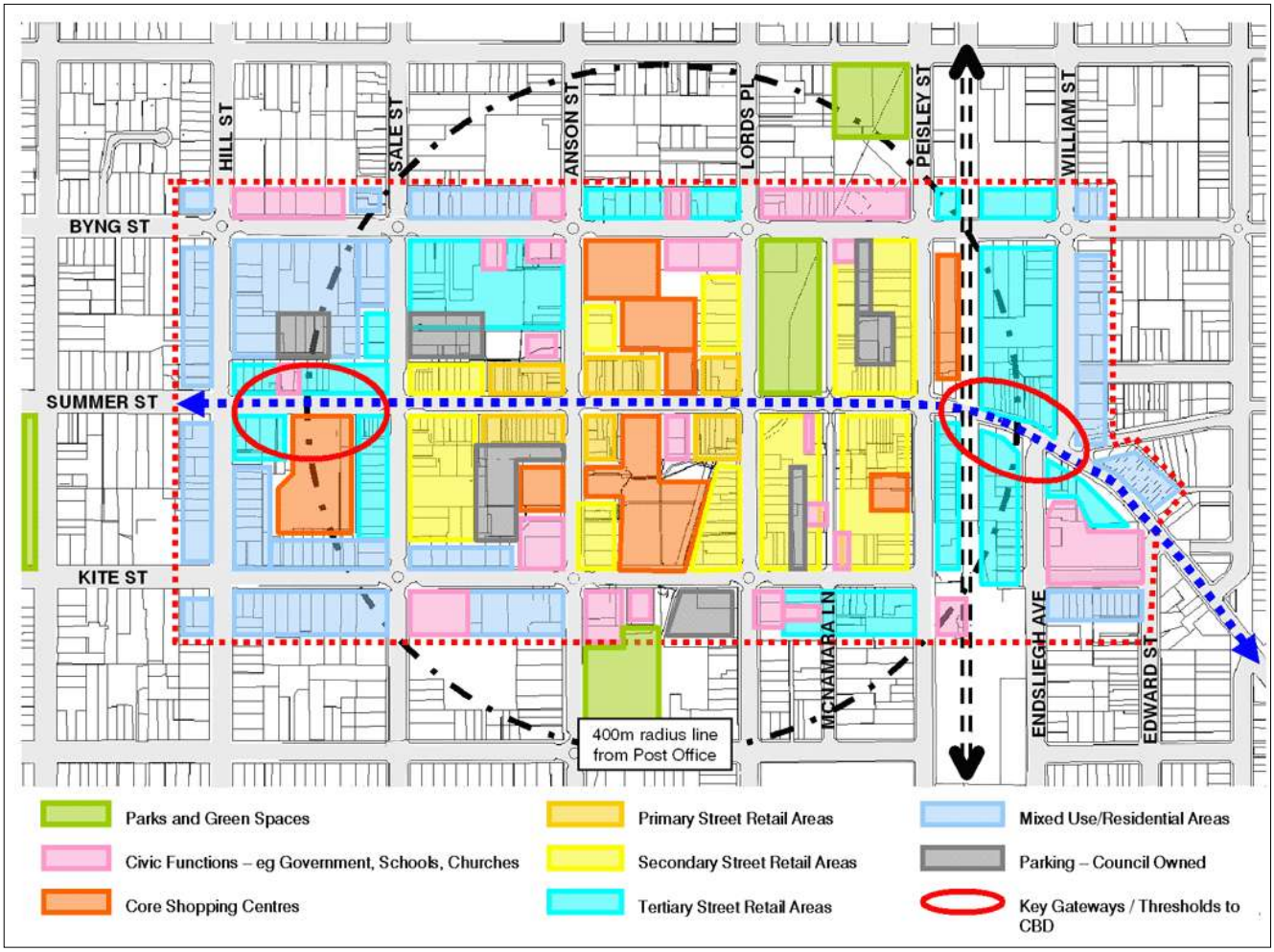
8.1 ORANGE CBD LEP 2000 Cl 53

DESIGN AND CHARACTER

The Orange CBD is characterised by predominantly two-storey buildings (some three storey) centred on Summer Street from Peisley Street to Sale Street between Kite and Byng Streets, built adjacent to the street frontage. Converted residential buildings predominate on the fringe of the CBD, particularly in those areas zoned Business Services 3(b).

A Strategic Action Plan for the Orange Central Business District prepared by Dickson Rothschild in 2002/03 identified a number of issues relevant to the development of the main business centre of Orange.

The CBD Strategic Plan identified the main functions of the CBD in the diagram below.



Structure Plan (Land Use) showing key functions in the study area and potential gateways to the CBD

The CBD Plan identified the following main issues:

- appropriate land uses
- building type and form, setbacks
- building facades and awning treatments
- regard for heritage values
- lack of active street frontages and unused entrances
- landscape and public domain features
- signage
- dilapidated or unused buildings

The CBD Plan found that the dominance of shopping centres and driveways to public and private parking areas can reduce streetscape qualities of CBD streets, which reduce pedestrian amenity. Blank walls and unused shop entrances reduce pedestrian amenity along important pedestrian-pathways frontages.

There is a need to create unifying elements along street facades and to integrate heritage features with new buildings. The orientation of businesses to the street ????

Design of development in the CBD needs to demonstrate that effective consideration has been given to the following principles:

- Development addresses the street through use of façade treatments, with unifying elements consistent with the heritage traditions of Orange - the image of each building positively reflects on the traditional character of the City.
- Active frontages that encourage pedestrian amenity, including regular pedestrian entries to buildings, limited vehicle driveways across footpaths.
- Variation in facades, including windows and pedestrian entries instead of blank facades to public areas.

The CBD has a number of heritage buildings dispersed throughout the main commercial area. Heritage houses flank the traditional commercial centre, many of which have been converted for specialised retail and professional premises in recent years.

Development in the CBD should continue the traditional urban form of buildings, with front elevations on or adjacent to the street boundary in those areas centred on Summer Street and associated side streets. Reinstatement of verandahs or awnings supported on posts is encouraged.



Photograph - The Parkview Hotel's reinstated verandah

Fringe-CBD areas - such as business-zoned areas on Kite, Hill and Byng Street and on Lords Place with a predominant residential scale - should retain this character.

Buildings identified as having heritage significance should be conserved. Adaptive reuse of heritage buildings is encouraged.

The conversion of former residential buildings on the fringe of the CBD within the 3(a) and 3(b) zones is encouraged. People wishing to convert a residential building for a business use should, however, be aware that the change of use may involve additional requirements for fire-safety measures and disabled facilities.



Photograph - Contemporary Urban design within a heritage setting

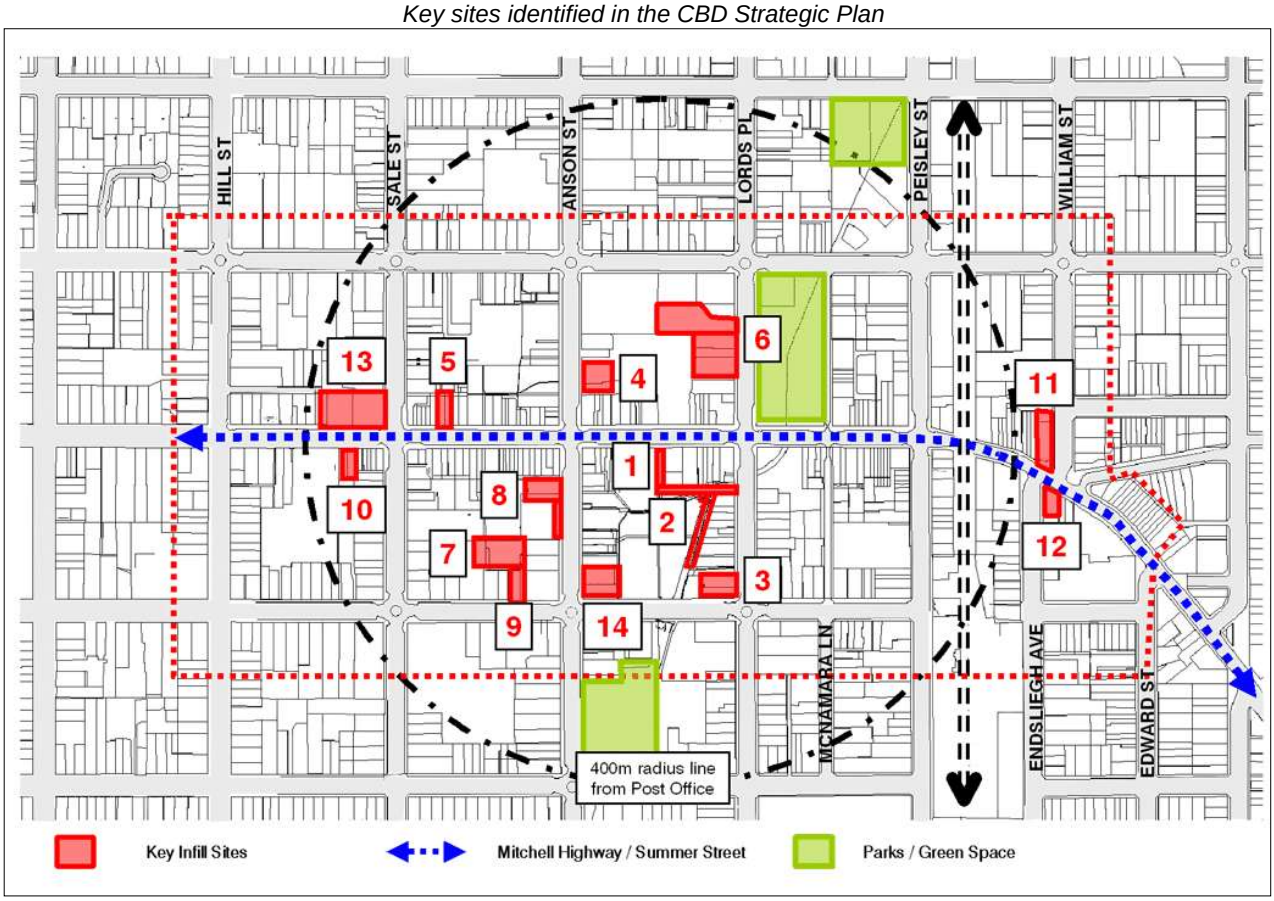


Photograph - Retained traditional shopfront – Peisley St

The CBD Strategic Plan identifies a number of “key sites” that can be enhanced through design to offer future opportunities for retail enhancement and development of the CBD.

The key sites are indicated in the following figure:

Key sites identified in the CBD Strategic Plan



The key sites identified in the CBD Strategic Plan include:

1 Post Office Lane
2 Colvin Lane and behind the Cinema
3 Supre Building
4 Anson Street frontage of Metroplaza
5 Capones (Rush Nightclub)
6 Motel/Liquor shop in Lords Place opposite Robertson Park
7 Woolworth's car park
8 Woolworth's Anson Street frontage
9 State Government Building car park area
10 Vacant Site near the front of Franklins Shopping Centre
11 Five Ways Council land
12 Five Ways vacant site opposite car yard
13 Service Station sites along Summer Street between Hill and Sale Streets
14 Stores at Corner of Kite and Anson opposite the State Government Building

Since the CBD Strategic Plan's preparation, development has been approved on site 11 and new development established at sites 5 and 12.

Redevelopment of key sites in accordance with the principles of the CBD Strategic Action Plan is encouraged.

PARKING AND LOADING

Anson Street rear-to-kerb parking

Off-street car parking should generally be located at the rear of buildings in order that the urban form of buildings on or near the street frontage is continued.

Provision needs to be made for loading and unloading off the street for activities that require servicing by large trucks. Such loading/unloading needs to be undertaken in a manner that does not require reversing onto or off the site.

Parking is to be provided according to Part 15 of this Plan.

PO 8.1-1 PLANNING OUTCOMES – CENTRAL BUSINESS DISTRICT

1 Buildings have a high level of urban design to contribute to the regional status of the City's Central Business District with attention given to façade features, external materials, colour and advertising.
2 Urban design demonstrates a clear reference to the CBD Strategic Action Plan.
3 Provision of adequate fire-safety measures and facilities for disabled persons (according to the BCA) are addressed at the application stage (relevant for all development but particularly important where converting residential buildings for business use).
4 Land use complements the role of the CBD as a regional centre for commerce and services.
5 The reinstatement of verandahs on posts over footpaths is encouraged.
6 Car parking is provided to meet demand either as on-site parking areas or through contributions towards public parking in and adjacent to the CBD.
7 Advertising comprise business identification signs in accordance with SEPP 64
8 Loading areas are provided for developments requiring access by large trucks in a manner that doesn't reduce active frontages for important pedestrian pathways.
9 Where possible, new buildings or external alterations in the CBD include an element of landscaping.

RELATED INFORMATION – ORANGE CBD
State Environmental Planning Policy No 22 – ***Shops and Commercial Premises***

8.2 SHOPS IN ZONE 3(b) LEP 2000 Cl 54

Under previous plans, retailing was restricted in the business zones beyond the CBD in order to reinforce the primary role of the existing retail precinct and associated public provision of off-street parking infrastructure.

Applications for shops in Zone 3(b) must demonstrate that the development is appropriate and will not detract from the main retail role of the CBD.

To achieve this, shops should be small scale. Shops should have a maximum area of 400m^2 in Zone 3(b).

PO 8.2-1 PLANNING OUTCOMES - BUSINESS SERVICES AREAS

1 Applications clearly demonstrate that the development will not detract from the role of the CBD as a regional centre.
2 Provision of adequate fire-safety measures and facilities for disabled persons (according to the BCA) is addressed at the application stage (relevant for all development but particularly important where converting residential buildings for business use).
3 Heritage streetscapes are conserved and enhanced through adaptive reuse of heritage buildings, restrained advertising and landscaped gardens.
4 Areas on the main roads into and out of Orange (such as Molong Road and Bathurst Road) provide a high level of architectural design to enhance the visual character of the City entrances.
5 All sites contain an element of landscaping. Landscaping provided is of a bulk, scale and height relative to buildings nearest the front property boundary so as to provide beautification and visual relief to the built form proposed or existing on the site. The depth of the landscape bed at the site frontage is sufficient to accommodate the spread of plantings that meet the abovementioned outcomes but, where practicable, a minimum depth of 3m is provided. Plantings are designed to provide shade for parking areas, to break up large areas of bitumen, to enhance building preservation and to screen against noise.

8.3 BULK RETAIL IN ZONE 3(C) LEP 2000 Cl 55

Sale of bulky goods was introduced in former LEP 11 with amending LEP 19 in June 1988, to permit such uses in industrial zones. Following preparation of a report by Leyshon Consulting on business development strategies for Orange, the approach to bulk retailing outside the CBD was further reviewed

Zone 3(c) includes provisions that define the type and range of bulk retail activities permitted in areas outside the CBD. Minimum floor spaces have been set for different activities.

PO 8.3-1 PLANNING OUTCOMES - BULK RETAIL AREAS

1 Applications clearly demonstrate that the development will not detract from the role of the CBD as a regional centre.
2 On-site parking and loading facilities are provided.
3 Buildings have a high level of architectural design, with particular attention given to façade features, external materials, colour and advertising.
4 The uses of premises comply with the minimum floor areas required under the LEP for various uses.
5 All sites contain an element of landscaping. Landscaping provided is of a bulk, scale and height relative to buildings nearest the front property boundary so as to provide beautification and visual relief to the built form proposed or existing on the site. The depth of the landscape bed at the site frontage is sufficient to accommodate the spread of plantings that meet the abovementioned outcomes but, where practicable, a minimum depth of 3.5m is provided. Plantings are designed to provide shade for parking areas, to break up large areas of bitumen, to enhance building preservation and to screen against noise.

8.4 EASTERN GATEWAY DEVELOPMENT LEP 2000 Cl 56

BACKGROUND

The Business Development Strategy Study prepared for Council by Leyshon Consulting in 1996-97 identified that provision was needed in Orange for large-floor-space retail outlets - which, due to their operational requirements, are less suited to central city locations. The Strategy Study acknowledged that the area known as the Eastern Gateway is appropriate for consideration as a potential area for special retail uses.

BUILDING DESIGN CONSIDERATIONS

The eastern entry to Orange has a distinct rural/urban edge defined by the Cameron Place commercial development on the northern side of the Mitchell Highway and by the Orange Homemaker Centre on the southern side.

Development within the Bulk Retail zone on the Mitchell Highway needs to include buildings with facade treatment, setbacks and landscaping that satisfactorily demonstrate that a high standard of design is provided, consistent with the need to present a quality entry to the City.

Building heights, setbacks and landscaping should be consistent with the original stages of the Orange Homemaker Centre development and complement existing development on Cameron Place.

All buildings must be consistent in external design, materials, finishes and colour to ensure that each building appears to form part of a complex.



Photograph - Orange Grove Homemaker Centre

LANDSCAPING

The Mitchell Highway

The avenue planting theme for the landscaped entry to the City needs to be continued for landscaping adjacent to the Mitchell Highway frontage.

Landscaping should comprise a reasonable number of plantings of both native and introduced species, including plants with a mature height equal to or greater than the height of buildings.

Lone Pine Avenue

Landscaping along the Lone Pine Avenue frontage should be able to screen development within the zone from the adjacent residential areas.

ADVERTISING

One free-standing sign that identifies the centre and individual premises located within lots under Deposited Plan 270204 may be permitted on the land adjacent to one entrance on the Mitchell Highway. The height of these signs is to not exceed the relative height of buildings on the land.

Flush-wall/top-hamper signs may be appropriate on the elevations of individual shops provided that the signs are wholly contained within the building elevation and do not protrude beyond the roof line or edges of the building. Such signs should not exceed 25% of the area of the building elevation above awning height.

ENVIRONMENTAL CONSIDERATIONS

Water Catchment

Part of the subject land is situated within the Suma Park Dam water-catchment area. Development of land within the Bulk Retail zone in the vicinity of the Mitchell Highway and Lone Pine Avenue needs to include measures that ensure that the water-catchment area is protected from any potential generation of pollutants and nutrients on the site.

Contamination

Where any on-site fuel storage is proposed, measures will be required to protect soil and ground or surface waters from contamination. Bunding/sealing of underground fuel storages and pollution-control measures for fuelling areas will be required to prevent pollution, with particular attention given to protecting the City's water-supply catchment.

TRAFFIC AND ACCESS

Access to the Mitchell Highway is limited to the existing entrances for the Orange Homemaker Centre and Redmond Place.

PO 8.4-1 PLANNING OUTCOMES –EASTERN GATEWAY BULK RETAIL AREA

1 Applications clearly demonstrate that the development will not detract from the role of the CBD as a regional centre.
2 Adequate on-site parking, manoeuvring and loading facilities are provided.
3 Buildings have a high level of architectural design, with particular attention given to highway setbacks, façade features, external materials, colour schemes and advertising.
4 Building height, façade features and colour schemes are consistent with the existing stages of development (ie, the Orange Homemaker Centre buildings approved prior to the date of this Plan).
5 Access to the Mitchell Highway is limited to those entrances established prior to this Plan coming into effect.
6 Advertising is limited to flush-wall signs wholly contained within the elevation of the building, with signage comprising up to 25% of the façade area. There are no additional pole signs fronting the Mitchell Highway.
7 Appropriate measures are taken to protect the adjacent water-supply catchment from pollution.
8 All sites contain an element of landscaping. Landscaping provided is of a bulk, scale and height relative to buildings nearest the front property boundary so as to provide beautification and visual relief to the built form proposed or existing on the site. The depth of the landscape bed at the site frontage is sufficient to accommodate the spread of plantings that meet the abovementioned outcomes but, where practicable, a minimum depth of 3.5m is provided. Plantings are designed to provide shade for parking areas, to break up large areas of bitumen, to enhance building preservation and to screen against noise.

RELATED INFORMATION – EASTERN GATEWAY DEVELOPMENT

Leyshon Consulting 1997. *Development Strategy Study* prepared for Orange City Council to provide alternative strategies for the location of business development in the City.

8.5 DESIGN CONSIDERATIONS FOR DEVELOPMENT IN THE VICINITY OF PERC GRIFFITH WAY LEP 2000 Cl 51A

GATEWAY ENTRANCE

The eastern entry to Orange has a distinct rural/urban edge. Adjoining and adjacent development comprises large commercial buildings with facades to the Mitchell Highway comprising quality urban design commensurate with the high-profile location of the site. The development of the subject land is to include buildings with façade treatment, setbacks and landscaping that satisfactorily demonstrate to Council that a high standard of design is provided consistent with the need to present an appropriate entry to the City.

Building height, location and setbacks should be generally consistent with the Cameron Place development adjoining the subject land.

Attention is to be given to landscaping and façade treatment along the eastern and southern boundary of the site, in order that the development enhances the character of the eastern gateway to the City.

BUILDING MATERIALS

All buildings on the site are to be consistent in external design, materials, finishes and colour to Council's satisfaction.

SITE COVERAGE

Site coverage for each development will be determined by compliance with performance criteria. Generally, a site coverage not exceeding 50% can be used as a guide; however, where the applicant can demonstrate to Council's satisfaction that the requirements for setbacks, parking access, loading/unloading, manoeuvring and landscaping can be met, a variation to this may be permitted.

MINIMUM SIZE OF ALLOTMENTS

The minimum allotment size is to be determined on the adequacy of the proposed lot to provide a reasonable area for landscaping, car parking, manoeuvring areas and a building footprint for the anticipated use.

A minimum frontage of 25 metres to a public road is to be provided.

No access is to be permitted for allotments fronting the Mitchell Highway.

BUILDING SETBACKS

Front boundary

- Allotments having an area of between 1,000m^2 and 2,000m^2 are to have a minimum setback of 7.5 metres plus 1.25 metres for each 200m^2, or part thereof, of site area above 1,000m^2.
- Allotments having an area of in excess of 2,000m^2 are to have a minimum setback of 15.0 metres.
- Council will not require a setback of more than 50% of the depth of a parcel of land from the road alignment.
- All buildings are to be set back a minimum of 20 metres from the boundary fronting the Mitchell Highway.
- Council may permit the development of office space closer than the setbacks specified above where such space is an integral part of the proposal, is intended to be used in conjunction with the approved activity and is to be constructed with selected brick.

Side and rear building lines

- *Allotments less than 2,000m^2*. Council may permit all or any of the side or rear walls to be constructed on the property boundary. Construction of walls on boundaries is subject to compliance with the Building Code of Australia and an assessment of any required landscape screening that may be required.
- *Allotments 2,000m^2 or more*. Subject to the provisions of the Building Code of Australia, Council may permit the erection of side walls on boundaries, provided that an open yard space

and landscaping is provided at the rear of the development with satisfactory access from the road to provide for fire-fighting access.

OFF-STREET PARKING, MANOEUVRING AND (UN)LOADING AREAS

Parking and manoeuvring areas are to be incorporated into landscaped areas of the frontage of the site to enhance the overall amenity of the site.

All loading and unloading of vehicles are to be conducted wholly within specified (un)loading areas. The loading bay, if required, is to be accessible at all times and should be of suitable dimensions to accommodate the vehicles using the bay.

All access to loading bays, parking and manoeuvring areas are to be paved in concrete, bitumen, hotmix or pavement bricks.

The provisions of Chapter 15 of this DCP – Car Parking apply.

DRIVEWAYS

A vehicle-access driveway should be not less than 6-metres wide at the property boundary. Driveway widths may be varied at Council's discretion to ensure that vehicles may exit the development without crossing the centre line of the public road.

Internal-traffic facilities are to be designed in a manner that will ensure that all traffic enters and leaves the site in a forward direction.

Driveways are to be located no less than 6 metres from an intersection of a public road.

Driveways are to be positioned at right angles to the kerb to ensure safe entry and exit from the site.

LANDSCAPING

A detailed landscape plan is to be submitted with a development application for future development of the site. The landscape plan should entail:

a type and location of plant material;
b position of landscaping to parking, storage and waste-disposal areas;
c location of sprinklers/drip systems.

- *Mitchell Highway frontage*. Landscaping is to comprise a reasonable number of plantings of both native and introduced species, including plants with a mature height equal to or greater than the height of buildings.
- *Eastern and northern boundaries*. Landscaping is to comprise a reasonable number of plantings of both native and introduced species, including plants with a mature height equal to or greater than the height of buildings. The density of plantings is to achieve suitable screening to adjoining rural residential development. The need to provide for wetland-stormwater control on the south-eastern end of the subject land provides opportunities for landscaped earth batter.

Plantings are to be designed to provide shade for parking areas, to break up large areas of bitumen, to enhance the face of the buildings and to screen against noise.

ADVERTISING

Details of all advertising signs and/or structures are to be submitted with the development application. All advertising is to be in accordance with the provisions of Part 13 of Orange Local Environmental Plan 2000 and State Environmental Planning Policy No 64 “Advertising and Signage”.

CONTAMINATION

Where on-site fuel storage is proposed, measures are to be undertaken to protect soil and ground and/or surface water from contamination. Bunding/sealing of underground fuel storages and pollution-control measures for fuelling areas will be required to the satisfaction of Council, the NSW Health Department and/or the Environment Protection Authority where necessary.

TRAFFIC AND ACCESS

Access to the proposed development is to be via Perc Griffith Way. No direct access to the Mitchell Highway will be permitted with any future development of the site.

Development applications for future development of the site are to include a traffic study identifying traffic impacts and measures required to maintain and improve traffic safety and service in the vicinity.

Any adjustments required to Perc Griffith Way and the Mitchell Highway intersection as a result of commercial development on the subject land is the responsibility of the developer.

ENVIRONMENTAL CONSIDERATIONS

The subject land is situated within Suma Park Dam water- catchment area. Planning provisions for the water-supply catchment impose limits for the type of land uses, subdivision controls and performance measures to ensure that adequate consideration is given to the potential impacts of development on water quality and the environmental integrity of the catchment.

The water-catchment planning provisions apply a precautionary principle of Ecologically Sustainable Development (ESD). This approach includes provisions to reduce the chance of serious environmental problems, even where it is not certain when or if such problems will occur.

The design of the stormwater-management system for the subject land is to ensure that stormwater discharge from the land has sufficient treatment to meet the National Water Quality Management Strategy guidelines for fresh and marine waters and to comply with the Australian Drinking Water Guidelines 1996. These guidelines provide a framework for water-resource management and state specific water-quality guidelines for each environmental and public health value and the context within which they should be applied.

The proponent is to incorporate best-management practices in the proposal in order to minimise impacts on water quality during construction and long-term management of the development. An erosion-and-sediment-control plan will be required that adequately documents and describes the proposed measures to contain sediments on site without impacting upon the integrity of the system and the water catchment as a whole. The proponent is to also plan for any emergency events that are likely to impact on the environment and on the water-supply catchment.

The proponent is to prepare a water budget that calculates pre-development and post-development flows for the subject land. The proponent is to produce an estimate of the expected change in pollutant loads for the site. A rehabilitation plan for the subject land will be required that

adequately demonstrates the proposed timeframes and methods of rehabilitation of all exposed areas.

Measures to be incorporated into the design of the stormwater-management facility may include:

- wetland retention and/or provision of artificial wetlands for removing nutrients;
- mechanical treatment;
- runoff detention and control is to be provided for all events up to the 1% AEP (100-year ARI). The outflow rate is to suit the capacity of the stormwater-quality-treatment processes;
- streambank restoration and protection;
- dual stormwater control system (roof water/surface water).

Applications must therefore indicate measures for ensuring long-term, on-site management of wastewater runoff to protect surface and groundwater resources in the catchment. All development located in catchment areas must be able to demonstrate to the satisfaction of the consent authority that the development will not adversely affect the condition and integrity of the water-supply catchment.

In view of the above requirement for ongoing management of the wetland facility, it is appropriate for the subject land to be subdivided by way of Community Title. The subdivision proposal in design and management is to adequately demonstrate how the long-term management of the site will be undertaken under a Community Title scheme. The approved detail will need to be included in the management statement for the Community Title.

PO 8.5-1 PLANNING OUTCOMES – GATEWAY SITE DEVELOPMENT

1	Buildings cover up to 50% of the site area.
2	Buildings are designed in a manner commensurate with the high profile of the site. Architectural features are provided to the front building façade to provide relief using such elements as verandahs, display windows, indented walls, etc.
3	External materials consist of non-reflective building materials.
4	Adequate parking and on-site manoeuvring is provided.
5	Advertising involves Business Identification signs within the front façade and/or by a pole sign comparable with the relative height of the main building site.
6	Security fencing is located or designed in a manner that does not dominate the visual setting of the area.
7	Buildings achieve the setback described in the DCP provisions.
8	Applications are accompanied by a detailed landscape plan.
9	Development of the land is to provide for the integrated and effective management of stormwater runoff.

8.6 BROTHELS

LEP 2000 Cl 51
LEP 2000 Cl 57

As a consequence of amendments to the *Disorderly Houses Act* in 1995, brothels are now considered to be a legitimate land use that can be regulated through local environmental plans.

In line with the amendments to disorderly-houses legislation, the Department of Urban Affairs and Planning (now DIPNR) encouraged Councils to include provisions in local environmental plans to address brothels. In a letter to all councils in NSW in December 1995 from DUAP, the following statement was made:

> *Brothels are most suitable in commercial and industrial areas that are not adjacent to schools or facilities frequently used by children.*

The *Disorderly Houses Act* allows Councils to make an application to the Land and Environment Court for an order that a premises is to cease being used as brothel where complaints are received from residents or occupiers of premises affected by the operation of brothels.

The decision whether a brothel should cease operating may be made based on considering the following criteria, as listed in section 17 of the *Disorderly Houses Act 1943:*

a whether the brothel is operating near or within view from a church, hospital, school or any place regularly frequented by children for recreational or cultural activities,

b whether the operation of the brothel causes a disturbance in the neighbourhood when taking into account other brothels operating in the neighbourhood or other land use within the neighbourhood involving similar hours of operation and creating similar amounts of noise and vehicular and pedestrian traffic,

c whether sufficient off-street parking has been provided if appropriate in the circumstances,

d whether suitable access has been provided to the brothel,

e whether the operation of the brothel causes a disturbance in the neighbourhood because of its size and the number of people working in it,

f whether the operation of the brothel interferes with the amenity of the neighbourhood,

g any other matter that the Land and Environment Court considers is relevant.

Orange LEP 2000 allows brothels to be established only in Zone 3(b) - *Business Services* and in Zone 4 - *Industry and Employment*, consistent with advice from DUAP.

Under this Plan, when determining development applications for the use of premises for a brothel Council will consider how the development would be carried out by addressing the matters listed in points (a) to (f) from section 17 of the *Disorderly Houses Act*. Development applications for brothels must include information on how these matters are to be addressed to the satisfaction of Council.

Section 20 of the *Disorderly Houses Act 1943* as amended states that:

> *The enactment of the* Disorderly Houses Amendment Act 1995 *should not be taken to indicate that Parliament endorses or encourages the practice of prostitution, which often involves the exploitation and sexual abuse of vulnerable women in our society.*

Similarly, Council's consideration of development applications for brothels in accordance with the *Environmental Planning and Assessment Act* should not be taken to indicate that Orange City Council endorses or encourages the practice of prostitution.

Applications for brothels must demonstrate to Council's satisfaction that the premises will operate in a discreet and well-run manner in accordance with the law and in an appropriate location in accordance with all relevant environmental-planning considerations.

PO 8.6-1 PLANNING OUTCOMES - BROTHELS	
1	The premises operates in a location removed from, and not within sight of, churches, hospitals, schools or any other places regularly frequented by children for recreational or cultural activities such as parks, theatres, cinemas, sporting clubs, playgrounds, ovals and the like.
2	Two on-site parking spaces are provided for each person working from the premises at any one time.
3	The premises operates in a discreet, unobtrusive and inoffensive manner so that it does not interfere with the amenity of the locality.

RELATED INFORMATION - BROTHELS
Disorderly Houses Act
NSW Government. 2001. *Report of the Brothels Task Force*

8.7 DESIGN CONSIDERATIONS FOR COMMERCIAL DEVELOPMENT IN THE VICINITY OF DISTRIBUTOR ROADS LEP 2000 Cl 65

DISTRIBUTOR ROADS

The Northern Distributor Road, and the future Southern Distributor Road, traverse a range of lands on the edge of the established area of Orange, providing a distinct rural/urban edge. The distributors will provide many people with their first impression of the City. Development along these roads is therefore important to the reputation and brand of Orange of being a City of high visual quality. Commercial developments must therefore including buildings with appropriate façade treatment, setbacks and landscaping that satisfactorily demonstrate to Council that a high standard of design is provided consistent with the need to present travellers with a high quality impression of the City.

Council acknowledges a need for developments to have an appropriate level of visibility, however this should not exceed what is required to assist basic navigation. Building height, location and setbacks should avoid the temptation to dominate the vista of the corridor, as this may detract from the brand and impression of Orange.

Attention is to be given to landscaping and façade treatment along distributor frontages, in order that the development enhances the character of the corridor and maintains a welcoming feel to the City.

BUILDING MATERIALS

Buildings along the distributor roads are to exhibit a high standard of urban design in terms of external design, articulation, materials, finishes and colour to Council's satisfaction.

BUILDING SETBACKS

Front boundary

- Council will not require a setback of more than 50% of the depth of a parcel of land from the road alignment.
- All buildings are to be set back a minimum of 10 metres from any boundary fronting a distributor road, or former public road that generally comprises part of the road reserve of the distributor road.

- Front setbacks may include landscaped car parking areas, approved pylon signs and pedestrian/cyclist facilities.

Side and rear setbacks
- All buildings are to be setback a minimum of 3m from side or rear boundaries

OFF-STREET PARKING, MANOEUVRING AND (UN)LOADING AREAS

Parking and manoeuvring areas are to incorporate landscaped areas to enhance the overall amenity of the site.

All loading and unloading of vehicles are to be conducted wholly within specified (un)loading areas.

The loading bay, if required, is to be accessible at all times and should be of suitable dimensions to accommodate the vehicles using the bay.

All access to loading bays, parking and manoeuvring areas are to be paved in concrete, bitumen, hotmix or pavement bricks.

The car parking provisions of Chapter 15 of this DCP apply.

DRIVEWAYS

Vehicle-access driveways that directly access the distributor road are not permitted.

A vehicle-access driveway should be not less than 6-metres wide at the property boundary.

Driveway widths may be varied at Council's discretion to ensure that vehicles may exit the development without crossing the centre line of the public road.

Internal-traffic facilities are to be designed in a manner that will ensure that all traffic enters and leaves the site in a forward direction.

Driveways are to be located no less than 6 metres from an intersection of a public road.

Driveways are to be positioned at right angles to the kerb to ensure safe entry and exit from the site.

LANDSCAPING

A detailed landscape plan is to be submitted with any development application for commercial development adjoining a distributor road. The landscape plan should entail:

a type and location of plant material;
b position of landscaping to parking, storage and waste-disposal areas;
c location of sprinklers/drip systems.

Landscaping is to comprise a reasonable number of plantings of both native and introduced species, including plants with a mature height equal to or greater than the height of buildings.

Plantings are to be designed to provide shade for parking areas, to break up large areas of bitumen, to enhance the face of the buildings and to screen neighbouring lands against noise.

ADVERTISING

Details of all advertising signs and/or structures are to be submitted with the development application. All advertising is to be in accordance with the provisions of Part 13 of Orange Local Environmental Plan 2000 and State Environmental Planning Policy No 64 “Advertising and Signage”.

CONTAMINATION

Where on-site fuel storage is proposed, measures are to be undertaken to protect soil and ground and/or surface water from contamination. Bunding/sealing of underground fuel storages and pollution-control measures for fuelling areas will be required to the satisfaction of Council, the NSW Health Department and/or the Environment Protection Authority where necessary.

TRAFFIC AND ACCESS

Proposed developments must not involve direct access to the distributor road.

Development applications for future development are to include a traffic study identifying traffic impacts and measures required to maintain and improve traffic safety and service in the vicinity.

Any adjustments required to any intersection with a Distributor Road as a result of commercial development is the responsibility of the developer.

PO 8.7-1 PLANNING OUTCOMES – DISTRIBUTOR ROADS

1 Buildings are setback a minimum of 10m from the distributor road boundary and 3m from all side and rear boundaries, such setbacks incorporate appropriate landscaping, car parking and manoeuvring areas.
2 Loading and Unloading docks are not located in the setback to any public road, including the distributor road, and are suitably screened from adjoining lands.
3 Buildings are designed in a manner commensurate with the high profile of the distributor road. Architectural features are provided to the front building façade to provide relief using such elements as verandahs, display windows, indented walls, etc. The inclusion of 3 dimensional elements is encouraged.
4 External materials consist of non-reflective building materials.
5 Adequate parking and on-site manoeuvring is provided and all car parking areas are embellished with landscaping including shade trees.
6 Advertising involves Business Identification signs within the front façade and/or a pole sign comparable with the relative height of the main building on the site.
7 Security fencing is located or designed in a manner that does not dominate the visual setting of the area.
8 Applications are accompanied by a detailed landscape plan.
9 Development of the land is to provide for the integrated and effective management of stormwater runoff.
10 Development is designed to be accessed via approved local roads, in a safe and efficient manner, and incorporates any necessary upgrades of local intersections with the Distributor Road at the developers cost.

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